

Smith et al. v. BrightWave Health Corp.
Superior Court of California, County of Los Angeles

ORDER ON MOTION FOR CLASS CERTIFICATION

After review of the briefing and hearing record, the Court denies class certification.

The Court also strikes class allegations due to predominance and manageability concerns.

Individual claims remain pending.

Plaintiffs seek restitution and statutory damages in excess of \$350,000 for each named plaintiff.

No settlement has been reached.

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